

Stereo. H C J D A 38.

Judgment Sheet

IN THE LAHORE HIGH COURT, LAHORE

JUDICIAL DEPARTMENT

Writ Petition. No.44946 of 2025

Naeem Ullah.

Versus

Chaudhary Zulifqar Ahmad, etc.

J U D G M E N T

Date of Hearing	06.08.2025
For the petitioner	Mr. Muhammad Imran Sarwar, Advocate.
For Respondent No.1	Ch. Amir Hussain, Advocate (filed power of attorney).

Raheel Kamran J:- Through this petition under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 the petitioner has assailed vires of order dated 30.01.2025 passed by the Special Judge Rent, Gujranwala whereby petition under Sections 12 and 20 of the Punjab Rented Premises Act, 2009 (‘Act’) for deposit of rent and injunction against eviction of the petitioner from rented premises was dismissed as well as judgment dated 30.06.2025 passed by the Additional District Judge, Gujranwala whereby appeal preferred there-against by the petitioner was also dismissed.

2. Learned counsel for the petitioner contends that the impugned orders are contrary to law. He maintains that order of eviction of tenant could not be passed in the proceedings of an application filed just for deposit of rent by the tenant. He adds that landlord (respondent No.1) did not claim for the relief of eviction of the petitioner, therefore, courts below transgressed their authority in passing the impugned order. It is finally

contended by learned counsel for the petitioner that both the courts below did not pass any order regarding the amount of security paid by the petitioner to respondent No.1 at the time of oral tenancy, therefore, the impugned orders are liable to be set aside.

3. Conversely, learned counsel for respondent No.1 states that the petitioner is in default of payment of rent despite categorical order passed by the Rent Tribunal, therefore, the final order was rightfully passed under Section 24(4) of the Act which includes eviction order within its scope and ambit. He adds that even otherwise the petitioner is not entitled to the grant of any equitable relief on account of his inequitable conduct i.e. failure to deposit the rent in the court in defiance of order passed by the Special Judge Rent, Gujranwala on his application. He lastly contends that the impugned orders do not prejudice rights of respondent No.1 to claim recovery of the outstanding rent and the unpaid utility charges etc from the petitioner as well as right of the petitioner to claim recovery of the amount of security deposited, if any, after adjustment of the rent and other dues payable by him from the amount claimed.

4. Heard. Record perused.

5. To appreciate arguments of learned counsel for the parties in their proper context, it would be advantageous to reproduce provisions of Section 24 of the Act:-

“24. Payment of rent and other dues pending proceedings.— (1) *If an eviction application is filed, the Rent Tribunal, while granting leave to contest, shall direct the tenant to deposit the rent due from him within a specified time and continue to deposit the same in accordance with the tenancy agreement or as may be directed by the Rent Tribunal in the bank account of the landlord or in the Rent Tribunal till the final order.*

(2) *If there is a dispute as to the amount of rent due or rate of rent, the Rent Tribunal shall tentatively determine the dispute and pass the order for deposit of the rent in terms of sub-section (1).*

(3) *In case the tenant has not paid a utility bill, the Rent Tribunal shall direct the tenant to pay the utility bill.*

(4) *If a tenant fails to comply with a direction or order of the Rent Tribunal, the Rent Tribunal shall forthwith pass the final order.”*

6. The provisions of Section 24 of the Act are not expressly or by necessary implication confined in their scope and application to eviction proceedings but include other pending proceedings under the Act wherein payment of rent and other dues are required to be made. Had it been intention of the legislature to confine scope and application of the aforementioned provisions to eviction proceedings, heading of Section 24 of the Act would have been worded differently, such as “payment of rent and other dues pending eviction proceedings”. Legislature is presumed to be never short of words and omission of the word “eviction” in the heading of Section 24 of the Act is conscious and in line with provisions of the aforementioned section. No doubt Section 24(1) of the Act relates to eviction proceedings, however, that is not necessarily the case *vis-à-vis* other provisions of Section 24 *ibid*. Subsection (2) of Section 24 of the Act confers authority upon the Rent Tribunal to tentatively determine the dispute and pass the order for deposit of rent where there is a dispute of the rent due or rate of rent. There is nothing in the language of said provision that confines such disputes to eviction proceedings only and not extendable to other proceedings includes those under Section 20 of the Act. The requirement qua deposit of rent in terms of subsection (1), as mandated under subsection (2) of Section 24 of the Act, only suggests that the tentatively determined rent is to be deposited in the bank account of landlord or in the Rent Tribunal till final order within the time specified in the order passed under Section 24 of the Act. Likewise, subsection (3) of Section 24 of the Act empowers the

Rent Tribunal to direct the tenant to pay utility bills. The above provisions of subsection (2) & (3) of Section 24 of the Act are enforceable independently in all pending proceedings visualized under the Act and not just proceedings initiated on eviction petition. Finally, subsection (4) of Section 24 of the Act stipulates consequences for failure of the tenant to comply with the direction or order of the Rent Tribunal whereby it has been mandated to pass final order forthwith in such eventuality. The word “final order” has been defined in subsection (b) of Section 2 of the Act to mean final order passed by the Rent Tribunal culminating the proceedings including an order in respect of adjustment of *pagri*, advance rent, security, arrears of rent, compensation or costs but shall not include an order passed in an execution proceedings. The eviction order is manifestly not excluded from the scope of “final order” as defined in Section 2(b) of the Act.

7. When confronted, learned counsel for the petitioner could not point out any illegality warranting interference with the findings recorded by the lower appellate court to the following effect:-

“8. The learned trial court while giving findings on issue No.1 held that relationship of landlord and tenant between the parties exists. It was further observed by the learned trial court that none of the party put forth any documentary thing before the court to establish stance of either of them. The appellant feeling aggrieved from denial of respondent (landlord) to receive the rent of shop moved application u/s 12 & 20 of The Punjab Rented Premises Act 2009 to deposit rent in the government treasury, with the permission of learned trial court. As a result whereof the learned trial court had directed the appellant to deposit the rent in the court. Record reflects that despite the order of learned trial court the appellant only deposited rent for a period of three months i.e. on 22.05.2024, 14.10.2024 & 29.11.2024 but for the remaining period the appellant remained fail to deposit monthly rent even in the learned trial court. It was obligatory duty of appellant, to prove his bonafide, to deposit the rent of demised premises regularly without default but in vain. This act of appellant forced the learned trial court to dismiss the said petition vide

impugned order. In this regard learned trial court has also rightly referred relevant provision of law i.e. section 24 of the Act. It is pertinent to mention here that if the appellant is not ready to deposit rent in the court, despite court orders, then there is no expectation from him to pay rent of the demised premises to the respondent. As the appellant has himself violated the court orders, hence, the learned trial court has rightly given findings on issue No.1 by rejecting the petition of appellant and by accepting the leave to defend filed by the respondent....”

8. In the instant case as the petitioner has himself violated the court order, therefore, the impugned orders are liable to no interference. It is, however, made clear that since no claim for recovery of arrears of rent and/or utility bills etc or return of security after adjustment of the aforementioned amount was made by either of the parties nor the same was decided by the courts below in the impugned decisions, and that application of provisions of Section 11 and Order XXIII of the Code of Civil Procedure, 1908 have been expressly excluded under Section 34 of the Act, therefore, the parties are well within their rights to file such claims or counterclaims in accordance with law.

9. In view of foregoing, no illegality, infirmity or jurisdictional error has been pointed out by learned counsel for the petitioner in the impugned decisions of the courts below warranting interference of this Court in the exercise of jurisdiction under Article 199 of the Constitution of Islamic Republic of Pakistan, 1973. Resultantly, instant petition, being devoid of any merit, is hereby ***dismissed***.

(RAHEEL KAMRAN)
JUDGE

Approved for reporting.

JUDGE

Asim Shahzad